Bank Veto Message

President Andrew Jackson · July 10, 1832

Source: Andrew Jackson, Veto Message Regarding the Bank of the United States (July 10, 1832), text via the Avalon Project, Yale Law School. Public domain.

Henry Clay tried to make the Second Bank of the United States an issue in the 1832 election by pushing an early recharter through Congress. Jackson — who saw the Bank as a corrupt tool of eastern elites — vetoed the bill and explained his reasoning in a fiery message aimed less at Congress than at ordinary voters. The Bank War defined Jacksonian Democracy and reshaped the American party system.

Connect: Jackson's fight with the Bank echoes Jefferson's opposition to Hamilton's Bank from Class 6. What's the same? What's different?

Key Passages

On equal protection of the laws

> It is to be regretted that the rich and powerful too often bend the acts of government to their selfish purposes. … when the laws undertake to add to these natural and just advantages artificial distinctions, to grant titles, gratuities, and exclusive privileges, to make the rich richer and the potent more powerful, the humble members of society-the farmers, mechanics, and laborers-who have neither the time nor the means of securing like favors to themselves, have a right to complain of the injustice of their Government.

On monopoly

> Many of our rich men have not been content with equal protection and equal benefits, but have besought us to make them richer by act of Congress. … If we can not at once, in justice to interests vested under improvident legislation, make our Government what it ought to be, we can at least take a stand against all new grants of monopolies and exclusive privileges

On foreign stockholders

> Should its influence become concentered, as it may under the operation of such an act as this, in the hands of a self-elected directory whose interests are identified with those of the foreign stockholders, will there not be cause to tremble for the purity of our elections in peace and for the independence of our country in war?

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The Bank War (1832): Henry Clay and Nicholas Biddle pushed an early recharter of the Second Bank of the United States through Congress to make it an issue in the 1832 election.
Intended Audience *Who was the source written for?*	Congress, but mainly ordinary voters (farmers, workers, and Western and Southern voters) in the 1832 election.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	President Andrew Jackson, a self-styled champion of the 'common man' who distrusted banks, paper money, and Eastern financial elites.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. SAQ practice: Provide ONE example of how Jackson framed the Bank as an enemy of ordinary Americans.
2. How does Jackson's populist rhetoric here anticipate later movements (Populists, Progressives, New Deal)?
3. Whose interests did Jackson NOT speak for in this message?

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> Vetoing the recharter of the national bank, Jackson attacked it as a privileged monopoly serving the rich and powerful at the expense of the common people — a defining act of Jacksonian democracy.

Returning the bill

Having considered it with that solemn regard to the principles of the Constitution which the day was calculated to inspire, and come to the conclusion that it ought not to become a law, I herewith return it to the Senate, in which it originated, with my objections.

A bank of the United States is in many respects convenient for the Government and useful to the people. Entertaining this opinion, and deeply impressed with the belief that some of the powers and privileges possessed by the existing bank are unauthorized by the Constitution, subversive of the rights of the States, and dangerous to the liberties of the people, I felt it my duty at an early period of my Administration to call the attention of Congress to the practicability of organizing an institution combining all its advantages and obviating these objections. I sincerely regret that in the act before me I can perceive none of those modifications of the bank charter which are necessary, in my opinion, to make it compatible with justice, with sound policy, or with the Constitution of our country. . . . It enjoys an exclusive privilege of banking under the authority of the General Government, a monopoly of its favor and support, and, as a necessary consequence, almost a monopoly of the foreign and domestic exchange. The powers, privileges, and favors bestowed upon it in the original charter, by increasing the value of the stock far above its par value, operated as a gratuity of many millions to the stockholders.

[. . .]

On foreign stockholders

As little stock is held in the West, it is obvious that the debt of the people in that section to the bank is principally a debt to the Eastern and foreign stockholders; that the interest they pay upon it is carried into the Eastern States and into Europe, and that it is a burden upon their industry and a drain of their currency, which no country can bear without inconvenience and occasional distress. . . . Is there no danger to our liberty and independence in a bank that in its nature has so little to bind it to our country? The president of the bank has told us that most of the State banks exist by its forbearance. Should its influence become concentered, as it may under the operation of such an act as this, in the hands of a self-elected directory whose interests are identified with those of the foreign stockholders, will there not be cause to tremble for the purity of our elections in peace and for the independence of our country in war?

[. . .]

On the Supreme Court and the Constitution

The Congress, the Executive, and the Court must each for itself be guided by its own opinion of the Constitution. Each public officer who takes an oath to support the Constitution swears that he will support it as he understands it, and not as it is understood by others. . . . The opinion of the judges has no more authority over Congress than the opinion of Congress has over the judges, and on that point the President is independent of both.

[. . .]

On equal protection of the laws

It is to be regretted that the rich and powerful too often bend the acts of government to their selfish purposes. Distinctions in society will always exist under every just government. Equality of talents, of education, or of wealth can not be produced by human institutions. In the full enjoyment of the gifts of Heaven and the fruits of superior industry, economy, and virtue, every man is equally entitled to protection by law; but when the laws undertake to add to these natural and just advantages artificial distinctions, to grant titles, gratuities, and exclusive privileges, to make the rich richer and the potent more powerful, the humble members of society-the farmers, mechanics, and laborers-who have neither the time nor the means of securing like favors to themselves, have a right to complain of the injustice of their Government.

[. . .]

On monopoly

Many of our rich men have not been content with equal protection and equal benefits, but have besought us to make them richer by act of Congress. By attempting to gratify their desires we have in the results of our legislation arrayed section against section, interest against interest, and man against man, in a fearful commotion which threatens to shake the foundations of our Union. It is time to pause in our career to review our principles, and if possible revive that devoted patriotism and spirit of compromise which distinguished the sages of the Revolution and the fathers of our Union. If we can not at once, in justice to interests vested under improvident legislation, make our Government what it ought to be, we can at least take a stand against all new grants of monopolies and exclusive privileges, against any prostitution of our Government to the advancement of the few at the expense of the many, and in favor of compromise and gradual reform in our code of laws and system of political economy.

I have now done my duty to my country. If sustained by my fellow citizens, I shall be grateful and happy; if not, I shall find in the motives which impel me ample grounds for contentment and peace.

Words to know

charter — the law granting the bank its legal right to exist and operate

monopoly — exclusive control with no competitors

par value — the original face value of a share of stock

gratuity — a gift of money not earned

self-elected directory — a board of directors that picks itself, answerable to no voters

artificial distinctions — unfair advantages created by law rather than by talent or effort